

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Ellman	Team: Squad #08	CCRB Case #: 201705391	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/27/2017 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/27/2018	Precinct: 75		
Date/Time CV Reported Mon, 06/26/2017 12:00 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Mon, 07/03/2017 12:24 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Chiusano	23792	950205	NARCBBN
2. SGT Christophe Thomas	05203	926370	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jason Hawkins	19176	950572	NARCBBN
2. POM Kelly Brown	22825	929786	NARCBBN
3. DT3 Kathleen Grant	00286	917714	NARCBBN
4. DT3 Edward Najarro	4674	945431	NARCBBN
5. DT3 David Solmonsohn	03336	933374	NARCBBN
6. CPT Timothy Skretch	00000	926130	DBBKZ13

Officer(s)	Allegation	Investigator Recommendation
A . POM Thomas Chiusano	Abuse: Police Officer Thomas Chiusano entered and searched § 87(2)(b)	A . Exonerated
B . SGT Christophe Thomas	Abuse: Sergeant Christopher Thomas seized § 87(2)(b)'s property.	B . Unsubstantiated
C . SGT Christophe Thomas	Abuse: Sergeant Christopher Thomas threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . POM Thomas Chiusano	Abuse: Police Officer Thomas Chiusano failed to show the search warrant to § 87(2)(b)	D . Unsubstantiated

Case Summary

On May 27, 2017, at approximately 6:00 a.m., § 87(2)(b) was falling back to sleep in her bed at § 87(2)(b) in Brooklyn, when she heard individuals breaking the lock of her front door. Moments later, officers entered into § 87(2)(b)'s bedroom with their guns raised and pointed in her direction. (**Allegation A**)

Sgt. Christopher Thomas, of Brooklyn Narcotics North, asked § 87(2)(b) where her phone was, and she pointed to the table behind her bed. Sgt. Thomas told § 87(2)(b) to call her son, § 87(2)(b) and tell him to come to the apartment, and she did. After § 87(2)(b) concluded the call, Sgt. Thomas allegedly took § 87(2)(b)'s phone while it was still unlocked (**Allegation B**). Officers walked throughout the apartment, and § 87(2)(b) spoke with Sgt. Thomas and PO Thomas Chiusano, also of Brooklyn Narcotics North, in her bedroom. PO Chiusano spoke respectfully to § 87(2)(b) yet Sgt. Thomas allegedly told her that she was going to go to jail numerous times (**Allegation C**).

§ 87(2)(b) then responded to the location, and sat with officers in the kitchen. Officers found marijuana in plain-view in § 87(2)(b)'s bedroom, and § 87(2)(b) claimed that it was her marijuana through the NYS medical marijuana program, of which she is a patient. § 87(2)(b) asked PO Chiusano and Sgt. Thomas to see the search warrant, and they replied that he would see it at the stationhouse. § 87(2)(b) was arrested for § 87(2)(b), and transported to the stationhouse. After a half-hour at the stationhouse, PO Chiusano took § 87(2)(b) out of the holding cell and explained to him that the warrant concerned drugs and drug paraphernalia. § 87(2)(b) again asked PO Chiusano to see the warrant, and PO Chiusano told § 87(2)(b) that there was no need for § 87(2)(b) to read it, as he was going to explain it to him. PO Chiusano then quickly flipped through the warrant and told § 87(2)(b) that he would be released with a DAT if he signed it. § 87(2)(b) then allegedly signed the warrant without having the opportunity to read it (**Allegation D**), and was then released with a summons for § 87(2)(b).

Mediation, Civil and Criminal Histories

- This case is not eligible for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A FOIL request for a notice of claim has been submitted, and will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 02), and § 87(2)(b)'s second. (Board Review 03)
- PO Chiusano has five allegations of misconduct in two CCRB cases in his six-year-tenure with the NYPD. § 87(2)(g) none have been substantiated. (Board Review 04)
- Sgt. Thomas has 12 allegations in seven cases in his 17-year-tenure with the NYPD. Failure to show search warrant allegations against Sgt. Thomas were unsubstantiated in both 2014 and 2015. Sgt. Thomas has had no substantiated allegations. (Board Review 05)

Officer Identification

Sgt. Thomas and PO Chiusano were identified from § 87(2)(b)s and § 87(2)(b)s physical descriptions of them, as well as the roles they stated the officers played during the warrant execution.

§ 87(2)(b) recalled primarily interacting with two officers, one of whom was significantly taller and stockier than the other. § 87(2)(b) stated the stocky officer took her phone and threatened to arrest her, and the shorter officer later presented her with the search warrant. (Board Review 06) § 87(2)(b) also recalled a short officer with the search warrant, and a larger officer whom he believed was a sergeant based on how the other officers addressed him. § 87(2)(b) stated that this shorter officer asked him to sign the search warrant at the stationhouse. (Board Review 07)

From this, PO Chiusano is believed to be the officer with a copy of the search warrant, and Sgt. Thomas the other officer who took § 87(2)(b)s phone and threatened to arrest her. Though per his official pedigree information PO Chiusano is only a few inches shorter than Sgt. Thomas, PO Chiusano is believed to be much shorter than his stated height based on his in-person interview at the CCRB. § 87(2)(g)

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Thomas Chiusano entered and searched § 87(2)(g) in Brooklyn.

It is undisputed that PO Chiusano and other officers entered and searched § 87(2)(b)s apartment.

Warrant § 87(2)(b) authorized officers to enter and search § 87(2)(g). (Board Review 11)

§ 87(2)(g) it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B—Sergeant Christopher Thomas seized § 87(2)(b)s property.

§ 87(2)(b) stated that, near immediately upon entry into her bedroom, Sgt. Thomas asked her where her phone was, and instructed § 87(2)(b) to call her son. Sgt. Thomas told § 87(2)(b) to tell § 87(2)(b) that he needed to come to the apartment, which she did. After speaking on the phone with § 87(2)(b) Sgt. Thomas grabbed § 87(2)(b)s phone while it was still unlocked. § 87(2)(b)s phone was returned to her later, and she did not notice anything different with it. (Board Review 06)

§ 87(2)(b), § 87(2)(b)s girlfriend, called § 87(2)(b)s cell phone during the warrant execution. § 87(2)(b) stated that a male answered the phone and identified himself as PO Santiago. § 87(2)(b) asked to speak with § 87(2)(b) as she was concerned about her health

Allegation D—Police Officer Thomas Chiusano failed to show the search warrant to § 87(2)(b)

§ 87(2)(b) stated that he asked both PO Chiusano and Sgt. Thomas to see the search warrant, and was told he would be able to see it at the stationhouse. At the 75th Precinct stationhouse, § 87(2)(b) was in the holding cells for approximately one half-hour before PO Chiusano brought him out of the cells. PO Chiusano told § 87(2)(b) that the warrant concerned drugs, drug paraphernalia, and weapons. § 87(2)(b) again asked to see the warrant, and PO Chiusano stated there was no need, as he was going to explain the warrant to § 87(2)(b). PO Chiusano began reading through the first few lines of the warrant, which spanned multiple pages, and then quickly skipped to the end and told § 87(2)(b) that he would be released with a DAT if he signed it. § 87(2)(b) signed the document and was released with a summons for § 87(2)(b).

Sgt. Thomas stated he had no recollection of § 87(2)(b) asking to see the warrant at the stationhouse, and that he did not know if § 87(2)(b) was ever shown the warrant.

PO Chiusano stated that he had a copy of the search warrant, but did not recall anyone asking to see the warrant at the apartment. PO Chiusano recalled that either § 87(2)(b) or § 87(2)(b) signed the search warrant and that he was present for this, yet he could not recall who exactly signed it, or if the signing took place at the apartment or the stationhouse. PO Chiusano stated that, whoever it was, was given the opportunity to read the whole document before signing it. PO Chiusano recalled no conversation with § 87(2)(b) at the stationhouse that concerned the warrant.

§ 87(2)(g). As such, it is recommended that ***Allegation D*** be closed as ***unsubstantiated***.

Squad: 8

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date